Siting Watch — Weekly Brief (SAMPLE)

Data center, BESS, solar, substation and transmission land-use decisions in local government meetings As of Oct 16, 2026 · Coverage this week (8 jurisdictions): Loudoun, Prince William, Frederick and Spotsylvania counties, VA · Louisville Metro, KY · DeKalb County, GA · Pima County, AZ · Prince George's County, MD

> **How to read this.** Every fact links to its source, with the primary government document listed first. "Unconfirmed" means we could not tie the fact to a posted primary document as of Oct 16. Vote tallies are given as Yes-No (other). Some dates are our own calculations from the adopted text; those are marked "computed".

This week's 5 things that matter

1. **Frederick Co., VA has removed data centers from its zoning ordinance, but two grandfathered cases get a final hearing Oct 28.** The Board of Supervisors (BOS) adopted the removal 6-1 on Sep 23. Grandfathering covers only Winchester Gateway (CUP #03-26: 71.85 ac, ~158 MW, per the applicant) and Virginia Technology Park (REZ #04-26: 220.06 ac). Each must be heard by Oct 28, and the Planning Commission recommended denial of both.
2. **Prince William Co., VA has closed its Data Center Opportunity Zone Overlay map (8-0, Sep 22).** By-right data centers now stay only on parcels that were already in the overlay *and* are vested or in the pipeline. The pipeline route needs a legislative or site-plan filing accepted within 90 days, which we compute as about Dec 21, 2026. The same night, the Board denied Dominion's Vint Hill substation SUP 8-0, even though staff recommended approval.
3. **Loudoun Co., VA votes Oct 20 on pausing all legislative data center and substation decisions for up to 12 months**, retroactive to Sep 15. The same agenda includes a motion to move the Golden Substation decision up to **Nov 5**.
4. **Spotsylvania Co., VA's 555-acre Crossroads Technology Campus is next in line for the BOS.** The utility's form lists an estimated load of 894 MW and three new 230/34.5 kV substations. The Planning Commission recommended approval 4-2 on Sep 16, and the BOS hearing date is not yet posted. A draft Comprehensive Plan (recommended 5-0) would cap data center designation at 45% of industrially zoned acreage.
5. **Three moratoria now have known end dates:**
    - Louisville: 180 days, adopted Aug 13. A committee vote on the new data center code is tentatively set for Nov 17.
    - Pima: 120 days from Sep 22, ending about Jan 20, 2027 (computed).
    - DeKalb: to Mar 30, 2027. The definitions ordinance is deferred to a Nov 10 committee meeting.

Upcoming hearings and deadlines (Oct 16 – Dec 15, 2026)

Date	Body	Jurisdiction	Item	Applicant / case #	Why it matters	Source
Oct 20	BOS Business Mtg (4:00 PM)	Loudoun, VA	Pause on BOS action on legislative data center and substation applications (Item 14.p)	County-initiated	Freezes final votes up to 12 months while the Phase 2 data center ZOAM/CPAM is applied	eScribe agenda
Oct 20	BOS Business Mtg	Loudoun, VA	Golden Substation: move the decision from Dec 1 to Nov 5 (14.o)	LEGI-2025-0012; SPEX-2025-0032/-0033/-0137	Grid-reliability substation, deferred repeatedly	same
Oct 20	BOS Business Mtg	Loudoun, VA	Quantum Park ZCPA (14.j)	LEGI-2023-0097 / ZCPA-2023-0008	Expands the building envelope for already-approved data center, substation and office floor area	same
Oct 20	Planning & Zoning Committee (1:00 PM)	Louisville, KY	Data center LDC ordinance (pending legislation) + discussion of electricity, water, waste heat, noise and generators	O-251-26 (25-LDC-0014)	First of four scheduled committee work sessions	Legistar O-251-26
Oct 21	Planning Commission (7:00 PM)	Frederick, VA	Public hearing: zoning amendment allowing BESS by CUP in RA, TM, M1, M2 and EM	Ch. 165 OA (staff: Bittner)	Creates the county's first BESS use and standards	PC agenda · staff memo
Oct 21	Planning Commission (6:00 PM)	Spotsylvania, VA	Dominion and REC presentation on Battery Energy Storage Systems (discussion only)	—	Early signal of utility-scale BESS siting in the county	PC agenda
Oct 27 *(tentative)*	P&Z Committee	Louisville, KY	Discussion of zoning classifications, CUP process, maximum size and setbacks	ID 26-1651	Committee will discuss the size cap	Legistar API matter 66304
Oct 28	BOS (6:00 PM)	Frederick, VA	Public hearing: CUP #03-26, data center, 71.85 ac M1, PIN 63-A-80I	Winchester Gateway LLC	Last chance under the grandfathering resolution; PC recommended denial	BOS 10/28 draft agenda

Date	Body	Jurisdiction	Item	Applicant / case #	Why it matters	Source
Oct 28	BOS	Frederick, VA	Public hearing: REZ #04-26, RA→TM with proffers, 220.06 ac, PINs 33-A-89, 33-A-90, 33-9-1A	Virginia Technology Park / Executive Land Holdings IV, LLC (dba Equus Capital Partners)	Same; PC recommended denial 10-0	same
Oct 28 *(unconfirmed)*	BOS	Frederick, VA	Comprehensive Plan amendment on electrical infrastructure (transmission and substation siting)	County-initiated CPPA	Staff memo says a BOS hearing is scheduled Oct 28; it is **not** on the draft agenda as of Oct 16	CPPA memo
Oct 27 / Nov 17 / Dec 8 *(TBD)*	BOS	Spotsylvania, VA	SUP26-0003 Crossroads Technology Campus	RCK Digital Crossroads LLC	PC recommended approval 4-2; hearing date not yet posted (these are the next BOS dates)	CivicClerk events
Nov 3 *(tentative)*	P&Z Committee	Louisville, KY	Discussion of accessory data centers, telecom hotels and decommissioning	ID 26-1652	—	Legistar API matter 66305
Nov 5 *(if 14.o passes)*	BOS Business Mtg	Loudoun, VA	Golden Substation decision	LEGI-2025-0012	Dominion cites an SCC in-service date of June 2028	eScribe agenda
Nov 10	PECS Committee	DeKalb, GA	Substitute ordinance: data center definitions and classifications	2026-1273	Draft text bars data centers over 1,000,000 sq ft	Legistar 2026-1273
Nov 12	BOS	Frederick, VA	Ordinance removing the TM (Technology-Manufacturing Park) district (tabled to this date)	County-initiated	Removes the district that REZ #04-26 is seeking	Sep 23 BOS minutes
Nov 17 *(tentative)*	P&Z Committee	Louisville, KY	Review of recommendations; "potential committee vote"	ID 26-1653 / O-251-26	Committee vote that would send the code to the full Council	Legistar 26-1653
"October hearing" *(date unconfirmed)*	Planning & Zoning Commission	Pima, AZ	Data center zoning code text amendment	Development Services	Required by the moratorium work plan before BOS adoption	Res. 2026-56, Exh. A
~Dec 21 *(computed)*	Filing deadline	Prince William, VA	Last day for a data center, substation or site-plan filing to qualify for the DCOZOD pipeline	DPA2026-00006 §32-509.02(2)(e)	Filings after this date lose overlay (by-right) status	Sep 22 minutes, Ord. 26-67

Virginia

Frederick County

1. Data centers removed from the zoning ordinance, with grandfathering (ADOPTED Sep 23) - **Action:** The BOS removed "data centers" as a permitted or conditional use in **all** districts. It also deleted the definition (§165-1105.05) and the use standards (§165-705.01), for "the explicit purpose of prohibiting the development of data centers." - **Vote: 6-1** (Oates No). Oates argued for size limits and design standards instead. - The Planning Commission (PC) had recommended approval on Sep 2. - **Grandfathering resolution (7-0):** applies only to **CUP #03-26 Winchester Gateway** and **REZ #04-26 Virginia Technology Park**. Each must be heard "on or before October 28, 2026." - If either is approved, it counts as a "significant affirmative governmental act" under Va. Code §15.2-2307. - **Existing operator affected:** counsel for the operator of the existing data center near Middletown asked for grandfathering of a future expansion. Under the amendment, that facility becomes a non-conforming use. - **Related item:** the ordinance removing the **TM district** was tabled 7-0 to **Nov 12**, so it can follow the Board's decision on the Virginia Technology Park rezoning. - **Sources:** Sep 23 BOS minutes (draft, Oct 14 packet) · Sep 23 agenda

2. CUP #03-26: Winchester Gateway LLC (BOS public hearing Oct 28) - **Site and plan:** - Data center campus on 71.85 ac zoned M1 at Apple Valley Rd (Rt 652) / Middle Rd (Rt 628), bounded by Rt 37. PIN 63-A-80I, Back Creek District. - About 678,720 sf gross floor area (FAR 0.22). - **Power and water (applicant's narrative):** - ~158 MW maximum demand, with a new on-site substation built at the applicant's cost. - Initial power will run within existing easements along Rt 37 (served by SVEC/FirstEnergy). No gas turbines. - Water is capped at 35,000 gpd using closed-loop, air-cooled systems. No wells. - **Proposed conditions:** a 14-ft landscaped berm and Tier 4 Final generators. Generator testing is limited to weekdays, 8:30 a.m.–5 p.m. - **Recommendations:** - The **PC voted unanimously to recommend denial** on Sep 2. - The Historic Resources Advisory Board had recommended denial over the viewshed of the Kernstown battlefield (NVDaily). - **Opposition themes:** battlefield viewshed, possible need for new transmission lines, 60-ft building height, low-frequency noise and water use. - **Sources:** BOS 10/28 packet (applicant materials) · BOS 10/28 agenda · NVDaily, Sep 3, 2026

3. REZ #04-26: Virginia Technology Park (BOS public hearing Oct 28) - **Request:** 220.06 ac from RA to TM with proffers, for data center uses. South of Rest Church Rd, between Zachary Ann Ln and Ruebuck Ln (Clear Brook). PINs 33-A-89, 33-A-90, 33-9-1A, Stonewall District. - **Parties:** - Applicant/contract purchaser: Executive Land Holdings IV, LLC, dba Equus Capital Partners, Ltd. - Record owners: DTS, L.C. and William O. Minor. - **Proffers:** - Tier IV generators. - Testing only on weekdays, 8 a.m.–5 p.m., with no more than 15% of the site's generators (or 50% of one building's) tested at once. - Generator sound limits of 60 dBA next to residential uses and 70 dBA next to B3/M1 or utility uses. - **Program reported by NVDaily:** 10–11 buildings, three substation pads and up to 288 generators. - **PC recommended denial 10-0** (NVDaily, Jun 3, 2026). Concerns raised: water (up to 120,000 gpd proffered), low-frequency noise and thin proffers. - **Sources:** BOS 10/28 packet · NVDaily, Jun 3, 2026

4. BESS zoning amendment (PC public hearing Oct 21) - **Proposal:** creates a BESS use allowed by CUP in **RA, TM, M1, M2 and EM**. - **Standards:** - 200-ft setback from RA, RP, R4, R5 and MH1 lines, plus a Category C full-screen buffer. - A 6-ft opaque fence and a 20-ft clearance of combustible vegetation. - Compliance with NFPA 855 and UL 9540/9540A. - An emergency operations plan approved by the Fire Marshal. - Notice of intent to negotiate a siting agreement (Va. Code §15.2-2316.7) and a decommissioning agreement (§15.2-2241.2). - **Status:** the Board initiated the amendment Mar 25, 2026, at a potential applicant's request. - The Development Review and Regulations Committee (DRRC) **recommended waiting** for the Virginia Dept. of Energy model BESS ordinance, expected Dec 1, 2026. - **Source:** Staff memo + draft text

5. Comprehensive Plan amendment: electrical infrastructure (PC hearing held Oct 7; BOS date unconfirmed) - **Draft policies** for Chapter 6: - New high-voltage lines "shall be collocated" within existing

rights-of-way (ROW) “wherever practicable.” - A 500-ft objective between new overhead structures or ROW edges and homes, schools, day cares and places of worship. - For substations, that 500-ft objective would become an operative zoning setback. - **Status:** the PC outcome is not yet in posted minutes. The staff memo cites a BOS hearing Oct 28, but the item is not on the draft agenda. - **Transmission context:** - On Sep 23 the County Attorney briefed the Board on the MARL, Gore-Doubs-Goose Creek and Valley North projects (minutes). - NVDaily reports Valley North as a proposed 260-mile, 765 kV line, and that the county planned a $250,000 legal fund to oppose it. - **Sources:** CPPA memo · NVDaily, Aug 6, 2026

Prince William County

6. DPA2026-00006: Data Center Opportunity Zone Overlay District (DCOZOD) amended (ADOPTED Sep 22, 8-0) - **What changed:** - **No more map additions.** A parcel keeps overlay status only if it was in the overlay the day before adoption **and** meets one vesting/pipeline test: - proffers accepted; - a preliminary or final plan approved; - a zoning determination that is final and no longer appealable; or - a data center legislative application, **substation public-facilities review**, final site plan or final plat filed and accepted **within 90 days** (computed: ~Dec 21, 2026). - Within the overlay, by-right data centers are allowed in O(L), O(H), O(M), O(F), M-1, M-2 and M/T. - Elsewhere in those districts and B-1, a data center needs an **SUP** (FAR increase available by SUP). - Data centers are **prohibited** in agricultural, residential, PMR, B-2, B-3 and V districts. - Substations need 10-ft opaque fencing facing residential land. - **Amendment that failed (3-5):** cutting the 90-day window to 0 days. Boddye, Gordy and Stewart voted Yes. - **Source:** Sep 22 minutes, Ord. 26-67 (Oct 20 packet Item 4-A)

7. SUP2025-00009: Vint Hill Substation (DENIED Sep 22, 8-0) - **Site:** electric substation on ±23.41 ac at 13405 Vint Hill Rd (GPIN 7495-21-4209), zoned A-1, Brentsville District. The Comprehensive Plan designates the site CRes-1B. - **Recommendations:** staff recommended approval. The PC took no action twice (Sep 10 and Oct 29, 2025). - **Prior deferral:** on Jun 23 the Board deferred the case 5-2, citing insufficient information from Dominion (InsideNova). - **Opposition themes:** SF6 gas insulation, noise, visual impact and nearby schools (InsideNova). - **Sources:** Sep 22 minutes, Res. 26-571 · InsideNova, Jun 24, 2026

8. Solar canopies (Oct 20, Item 6-C): resolution to start amending Design and Construction Standards Manual (DCSM) §600 to implement Va. Code §15.2-961.4 (solar canopies over surface parking). Oct 20 agenda

Spotsylvania County

9. SUP26-0003: Crossroads Technology Campus (PC recommended approval 4-2, Sep 16; BOS hearing TBD) - **Applicant and site:** RCK Digital Crossroads LLC. About 555 ac on the north side of Eagle Dr (Rt 736), Lee Hill School Dr (Rt 635) and Mills Dr (Rt 17), next to the CSX line. Tax parcels 37-A-20, 37-A-21, 37-A-17D, Lee Hill District. - **Program:** - Up to **2,087,000 sf** in seven buildings and **three substations**. - The campus sits on the I-1/I-2 portion of the land; about 192 ac would be disturbed and about 63% kept as open space. - **Utility form (REC, Aug 7):** - Estimated load **894 MW**. - New substations: **3 × 230/34.5 kV, 298 MVA**. Transmission at 230 kV from Dominion. - REC notes the load figure comes from the applicant and has not been verified by REC. - **End user and generators:** the applicant’s representative named **Amazon** as the user and said there would be **238 generators**. - **Staff findings:** - Recommended approval with 54 conditions. - Weakness flagged: the site is “not proximate to existing transmission corridors,” so new lines are required and “Dominion has not finalized route alignments.” - Substation structures up to 75 ft tall should be set back per the viewshed analysis. - **PC actions:** - Found the substations in conformance with the Comprehensive Plan under §15.2-2232 (4-2). - A motion to defer failed 2-4. - Recommended approval 4-2 with 8 added conditions, including V-bank dry coolers, quarterly sound-compliance reports and a requirement that the sound engineer not be employed by Amazon. - WJLA (Sep 21) also identifies the user as Amazon Web Services. - **Opposition themes:** noise and infrasound, nighttime generator testing, transmission lines and eminent domain, water and

runoff, unmarked graves, and calls for a moratorium. - **Sources:** PC 9/16 minutes (draft) · REC HEUF form · PC staff report · WJLA, Sep 21, 2026

10. CPA25-0002: 2026 Comprehensive Plan update (PC recommended approval 5-0, Oct 7; 2 absent) - **Data center policy:** - A new "Data Centers Fiscal Guideline" designates **45% of industrially zoned acreage** for data center development. Staff had proposed 55%; the 45% figure came from Board direction. - The guideline is to be reassessed at the next 5-year update or when construction starts on 75% of entitled projects, whichever comes first. - The data center overlay is to be scaled back outside the Primary Development Boundary. - **Next step:** BOS adoption hearing (date not posted). - **Source:** PC 10/7 minutes (draft)

11. Transmission resolution (BOS consent agenda, Oct 13) - **What it asks:** that utilities, the SCC and the Commonwealth Transportation Board place new transmission lines in existing utility or VDOT ROW, and underground. - **Status:** adoption and the vote are **unconfirmed** (the posted draft has placeholder vote text). - **Source:** Draft resolution

12. BESS briefing (PC, Oct 21): Dominion and REC presentation. On Oct 7 the PC discussed keeping the Oct 21 date for a battery storage work session. PC 10/7 minutes

Loudoun County

13. Pause on legislative data center and substation applications (BOS vote Oct 20, Item 14.p) - **Background:** on Sep 15 the Board voted **7-1-1** (Umstattd No, Kershner abstained, per WJLA) to bring forward a resolution, after the County Attorney advised that a moratorium is not legal. - **What the resolution does:** - Pauses Board action for up to 12 months from the date an application first went to the Planning Commission, so Phase 2 of the Data Centers Standards and Locations ZOAM/CPAM can be applied. That work is expected to finish in summer 2027. - Effective **Sep 15, 2026**. Applications do not go inactive. - Applications can still move through the PC. - **Possible exceptions** (from the county release): grid reliability, or a statutory deadline that is about to expire. - **Related:** a closed session on the "grandfathering resolution" is also on the Oct 20 agenda. - **Sources:** Oct 20 agenda · County release, Sep 17 · WJLA, Sep 16

14. Golden Substation: LEGI-2025-0012 / SPEX-2025-0032, -0033, -0137 (Sterling District) - **Oct 20 motion:** move the decision from Dec 1 to **Nov 5**. - **History (Loudoun Now):** the Board deferred to December 5-4 on Sep 1, asking Dominion for a better design. Dominion cites a June 2028 in-service date set by the SCC. - **Sources:** Oct 20 agenda · Loudoun Now, Sep 2, 2026

15. Quantum Park: ZCPA-2023-0008 (Broad Run; Oct 20, Item 14.j) - **Request:** amend the concept development plan (CDP) and proffers of ZMAP-1998-0003 (WorldCom/Northern Virginia Campus) and ZCPA-2017-0009 to widen the building envelope for already-approved data center, substation and office floor area. - **Staff recommendation and square footage:** unconfirmed, because the staff report PDF is behind eScribe's bot check.

16. Auto World BESS: LEGI-2026-0029 / CMPT-2026-0016 (Oct 20 consent, Item 14.c.7) - **Request:** timeline extension. - **Project details (MW, site):** unconfirmed (packet not retrievable).

Kentucky — Louisville Metro

17. O-251-26: Land Development Code amendment on data centers (25-LDC-0014) - **History:** - Planning Commission recommended it **5-3** on Sep 3 (Spectrum News 1). - P&Z Committee, Sep 15: motion to recommend, then **postponed** by voice vote. - Held Oct 6. - **Committee schedule:** - Oct 20: on the agenda as pending legislation, plus a discussion session. - Oct 27, Nov 3 and Nov 17 (the last listed as a "potential

committee vote"), per Legistar. - **PC draft (Spectrum News 1):** - Data centers **capped at 500,000 sf** and allowed only in **M-1**. - A CUP is required above 50,000 sf. - Setbacks of 100–200 ft from residential, depending on size. - 65 dB noise limit. - Generator testing once a week on weekdays, and generators at least ¼ mile from sensitive uses. - Closed-loop cooling and a decommissioning plan required. - **Sources:** Legistar O-251-26 · Legistar 26-1653 · Spectrum News 1, Sep 4, 2026

18. Ordinance No. 151-2026 (O-135-26): temporary moratorium (PASSED Aug 13, 24-1; Benson No, Reno-Weber excused) - **Scope:** rezonings, CUPs and Category 2B/3 development plans for data centers and telecom hotels. - **Floor amendment:** added a moratorium on building permits to repurpose existing structures for these uses. - **Length:** an amendment to extend it from **180 to 365 days failed 10-15**. - **Expiry:** the exact date depends on the effective date (unconfirmed). Spectrum reports it could end early if regulations pass. - **Source:** Metro Council Aug 13 action summary

Georgia — DeKalb County

19. 2026-1273: data center definitions and classifications ordinance (DEFERRED with substitute Oct 13, 7-0, to PECS Committee on Nov 10) - **Aug 13 draft:** - Size tiers: up to 2,000 sf / <20,000 / 20,000–99,999 / 100,000–499,999 / campus up to 1,000,000 sf. **Anything over 1,000,000 sf is not permitted.** - Energy categories: <5, 5–20, 21–50 and >50 MW. - Water and noise classes. - **Not yet public:** the substitute text. - **Sources:** Legistar 2026-1273 · Aug 13 draft (.docx)

20. 2026-1109: moratorium extended to 11:59 p.m. Mar 30, 2027 (APPROVED Jul 7, 6-1; Terry No) - **Scope:** no applications accepted, and no permits granted or denied, for new or expanded data centers in unincorporated DeKalb. Covers SLUPs, rezonings, land disturbance permits (LDPs), building permits, business licenses and certificates of occupancy (COs). - **Background:** the BOC had rejected the land-use rules 7-0 on Jun 23. - **Sources:** Resolution · Legistar 2026-1109 · Atlanta News First, Jun 26

21. Litigation: Shadowbox Studios and Henrico 183 sued on Aug 5 to invalidate the moratorium. The site is ~200 ac at 3600 International Park Dr, and the companies requested 651 MW from Georgia Power in 2024. The suit claims $200M in lost value. Atlanta News First / Decaturish, Aug 13

Arizona — Pima County

22. Resolution 2026-56: 120-day data center moratorium (APPROVED Sep 22) - **Votes:** - Scope amendment, 4-1: the moratorium covers new data centers "where permits have not been submitted." - Adoption, **3-2** (Christy and Scott No). - The Board also directed a return before day 120 to consider extending it, and asked the Health Dept. for a public-health risk matrix. - On Aug 11 the Board had voted 3-2 to direct drafting of the resolution. - **Waiver:** available by Board vote after a public hearing with 1,000-ft notice. - **Work plan:** text amendment to the P&Z Commission at "the October hearing," then BOS adoption before expiry (~Jan 20, 2027, computed). - **Who is exempt:** KJZZ reports the amendment exempts Project Blue and the proposed ~160-ac "Project Gravel." - **Sources:** Legistar File 20801 (vote history) · Resolution + Exhibit A · KJZZ, Sep 23

23. P26SA00010: TEP W. Ajo Highway 138 kV substation (APPROVED Sep 8, 5-0) - **Applicant:** State of Arizona (Sonoran Land Resources, for Tucson Electric Power). - **Site:** ~15-ac portion of a 51.88-ac SR-zoned parcel (212-48-0700), southwest of W. Ajo Hwy / S. Spencer Ave, District 3. - **Staff recommendation:** approval with standard and special conditions. - **Source:** Legistar File 20745

Maryland — Prince George's County

24. CB-085-2026: Qualified Data Centers in rural and residential zones (HELD INDEFINITELY in PHED Committee, Sep 21, 4-0, 1 absent) - **What it would do:** allow qualified data centers in the AR zone (150-ac minimum) and the RE zone (50-ac minimum), and repeal the exemption from detailed site plan review. - **Reviews:** M-NCPPC technical staff opposed it (Jul 14). The Planning Board took no position (Jul 28). - **Sources:** Legistar CB-085-2026 · Technical staff report

25. CB-103-2026: would reduce and restructure the personal property tax exemption for qualified data centers. Referred to Government Operations and Fiscal Policy on Sep 1; no action since. Legistar

Policy trend: tools localities are using

Tool	Where	Status	What it means for siting
Remove the use from the zoning ordinance	Frederick, VA	Adopted Sep 23 (6-1); TM district removal on Nov 12	No new data center path short of a new text amendment. Only two grandfathered cases remain. Existing sites become non-conforming.
Close the overlay + pipeline window	Prince William, VA	Adopted Sep 22 (8-0)	By-right status is frozen to vested and pipeline parcels. Everything else needs an SUP, and agricultural/residential districts are barred. Filing window runs to ~Dec 21 (computed).
Pause on board decisions (not a moratorium)	Loudoun, VA	Vote Oct 20	Cases still move through the PC, but final votes on data centers and substations wait up to 12 months for Phase 2 rules. Budget for that delay in schedules.
Moratorium (Virginia counsel says it is not legal there)	Louisville (180 days), Pima (120 days), DeKalb (to Mar 30, 2027)	All in force	DeKalb also freezes permits, LDPs and COs. Pima has a Board waiver path. Each is tied to a code rewrite now in committee.
Caps on size and share	Louisville (500k sf draft), DeKalb (1M sf draft), Spotsylvania (45% of industrial acreage)	Pending	Hyperscale campuses above these thresholds would need different sites or phased entitlements.
Substation and transmission scrutiny	Prince William (Vint Hill denied), Loudoun (Golden delays), Frederick (collocation and 500-ft draft policy), Spotsylvania (ROW/underground resolution)	Active	Substation SUPs are now contested on their own, even when staff recommends approval and a utility cites reliability. Expect collocation and setback policies to be written into code.
BESS rules ahead of the state model	Frederick (Oct 21 hearing), Spotsylvania (Oct 21 briefing), Loudoun (Auto World BESS)	Early	Virginia Dept. of Energy model ordinance expected Dec 1, 2026. Frederick's own advisory committee (DRRC) recommended waiting for it.

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